

[SEAL]

(Name of court)

Form 37: Notice of Hearing

at

Court office address

Applicant(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

NOTICE:

THE COURT WILL HOLD A WRITTEN HEARING on
(date)

at **a.m./p.m.**, or as soon as possible after that date at (place of hearing)

This court has received

- ☐ An application under the *Convention on the International Recovery of Child Support and Other Forms of Family Maintenance*, as implemented in Ontario for
 - ☐ an order ☐ a change of an order
- ☐ An application under the *Interjurisdictional Support Orders Act, 2002* for
 - ☐ an order ☐ a change of an order
- ☐ An application under the *Divorce Act* for
 - ☐ an order ☐ a change of an order
- ☐ A provisional ☐ order ☐ change of an order
 - ☐ in another part of Ontario ☐ outside Ontario

The details are set out in the attached materials.

IF YOU WANT TO OPPOSE ANY CLAIM IN THIS CASE, you or your lawyer must prepare an Answer (a blank copy of which is attached) and file a copy in the court office. **YOU HAVE ONLY 30 DAYS AFTER THIS NOTICE IS SERVED ON YOU TO FILE AN ANSWER TO THIS CASE.**

Whether or not you wish to oppose a claim in this case, **YOU MUST FILE A FINANCIAL STATEMENT** (a blank copy of which is attached) with the court office **WITHIN 30 DAYS AFTER THIS NOTICE IS SERVED ON YOU.**

If you want to ask for an oral hearing, you must prepare a motion (Form 14B – blank copy attached), and file a copy in the court office **WITHIN 30 DAYS AFTER THIS NOTICE IS SERVED ON YOU.**

The court will only consider the written materials in this case on the date noted above. **UNLESS THE COURT ORDERS OTHERWISE, THERE IS NO NEED FOR YOU TO COME TO COURT OR TO HAVE A LAWYER THERE TO ARGUE YOUR CASE.** If an order is made or the judge requires you to be present or provide further evidence, you will be notified.

IF YOU DO NOT FILE WRITTEN MATERIALS, THE COURT MAY MAKE AN ORDER WITHOUT YOUR WRITTEN ANSWER AND ENFORCE IT AGAINST YOU.

You should get legal advice about this case right away. If you cannot afford a lawyer, you may be able to get help from your local Legal Aid Office. (See your telephone directory under *LEGAL AID*.)

Date of signature

Signature of registrar or clerk of the court

NOTE: A copy of the application should be attached to this notice, along with a copy of the applicant's financial statement, a copy of any provisional order and a copy of the applicant's evidence. Also attached to this notice should be a blank Financial Statement that you must fill out and file. If a provisional order was made in another part of Ontario, you must **serve** and file your financial statement.

If any of these documents is missing, you should talk to the court office at the address at the top of this form immediately.